

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jose S. Franco
(Covering for Honorable Jeffrey B. El-Hajj)**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: September 15, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, you must call (408) 808-6856 before 4:00 P.M.

You must also contact the other side before 4:00 P.M. to inform them that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

LINE #	CASE #	CASE TITLE	RULING
9:00 Line 1	22CV399413	Li Liu v. Kenneth To	Plaintiff's Motion to Correct Reporter's Transcript Plaintiff's motion to correct and settle the court reporter's transcript of December 16, 2025 Trial Setting Conference hearing was filed on March 20, 2026. A Proof of Service by mail was filed on March 27, 2026. Notice is proper and no opposition was filed by the Defendant. The Plaintiff provides no legal authority for their argument in the motion, notice, or memorandum of points and authorities. Further, the Plaintiff does not provide the entire transcript of the hearing but only different pages and references statements from a previous hearing. California Code of Civil Procedure section 273(a) creates a rebuttable that a certified court reporter's transcript is accurate. The Plaintiff has not rebutted the presumption as to the transcript of the December 16, 2025 Trial Setting Conference, and has not made the requisite showing to rebut the presumption by competent evidence. Additionally, the Trial Setting Conference was a scheduling hearing and not a substantive hearing addressing material issues related to witness testimony, exhibits, evidence, arguments of the parties or merits of the case. The motion is DENIED.

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9:00 Line 2	25CV457719	TBF Financial I, LLC, a Limited Liability Company v. CUKUI, a Corporation et al.	Plaintiff's Motion for Entry of Judgment Pursuant to Stipulation Plaintiff's unopposed motion for entry of judgment pursuant to stipulation (Code Civ. Proc., § 664.6) was filed on February 18, 2026, with proof of service by first class mail. Notice is proper and the motion is unopposed. The parties signed a stipulation for entry of judgment on or about March 23, 2025, under which Defendants agreed to make installment payments to pay off a debt. A declaration in support of the motion indicates Defendants stopped making payments. On good cause shown, the motion is GRANTED. Plaintiff (Moving Party) is to submit a proposed order and proposed judgment, indicating damages/principal of \$8,408.95, interest of \$1,893.63, attorney's fees of \$1,350, and costs of \$536.56 for a total of \$12,189.14.
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